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File No.: EXP202211515

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 1, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against B.B.B. (hereinafter, the respondent), through the Agreement that is transcribed:

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Procedure No.: EXP202211515 (PS/024/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 02/10/22, Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint was directed against the entity B.B.B. with NIE: ***NIE.1 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The reasons presented in the complaint were, essentially, the following:

On June 14, I sent an email to the following email addresses of the data controller: ***EMAIL.1, ***EMAIL.2, ***EMAIL.3 with the purpose of exercising my right to erasure of personal data.

I attached a model that I downloaded from the AEPD website and sent it signed along with a copy of my ID, also requesting confirmation of the receipt of the email. I did not receive a response to that email, but they contacted me by phone and on July 11 confirmed via email, from customer service, that "we will proceed to fulfill your request for total data deletion on Amazon in both involved accounts."

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Both by phone and by the customer service email, they confirmed that they would delete all my data. Given this, on August 21 and September 4, they sent me advertising emails to subscribe to Audible services (Amazon).

The complaint submission includes the following documentation:

- Copy of the email sent from the complainant's email address ***EMAIL.4, on 05/06/22 to the email addresses ***EMAIL.1, ***EMAIL.2, and ***EMAIL.3 with the following message:

"Good afternoon, On January 26, 2022, I canceled my subscription to Audible. Since then, I continue to receive charges in my bank account and as you know, bank details are personal data. If I do not receive a refund for the amounts improperly charged and continue to have receipts charged to my account without my consent and, therefore, processing my personal data, you will receive the corresponding lawsuit in the courts as well as at the Spanish Agency for Data Protection. I await your news."

- Copy of the email sent from the complainant's email address ***EMAIL.4, sent on 14/06/22 to the email addresses ***EMAIL.1, ***EMAIL.2, and ***EMAIL.3 with the following message in English (translated into Spanish):

Following this cycle and having received no response from you, I attach:

I. Request for my right to erasure and limitation of processing duly signed. II. Copy of my Spanish

identity (DNI).

Furthermore, I hereby request to be notified of the receipt of this email and to be notified in writing of the result of the erasure and limitation of processing carried out (...)."

- Copy of the email sent from the address ***URL.1***EMAIL.5, on 11/07/22, to the complainant's email address ***EMAIL.4, which contained, among other things, the following message:

"Hello, Ms. A.A.A.: (...) The second and no less important thing is that we will proceed to fulfill your request for total data deletion on Amazon in both involved accounts.

(...)

[We have canceled your subscription to Audible and have issued a refund to your credit card.

Depending on your bank, the refund may take between 7 and 10 business days to appear in your account.]

[I confirm that I have unsubscribed you from Audible communications. If you receive marketing emails in the next 5 business days, you will...]

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We ask for your patience. Our emails are sometimes scheduled a week in advance.]

In reference to the other account associated with this email address, we need to ensure that we are authorized to close it. We kindly ask you to submit a new request following the previous steps.]

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Copy of the email sent from the address ***URL.1 on 04/09/22 to the claimant's email address ***EMAIL.4, which contained the following promotional message:

"Listen to everything you want for 90 days! Free 90-day trial. Pause or cancel at any time. Start saving."

Try Audible free for 90 days and then only €9.99/month. Cancel at any time.

Stream a wide catalog of audiobooks, original podcasts, and children's content

✓ Listen whenever and wherever you want, even offline

✓ Pause or cancel your subscription at any time

✓ Free 90-day trial

Audible on offer - 90 days free. This offer is only valid until 11.09.2022. At the end of your 90-day free trial, if you do not cancel your subscription, it will automatically renew at the regular rate of €9.99/month, which will be charged to the credit card registered on your Audible account. The offer is only valid for new customers in Spain. This offer cannot be combined with other promotions and can only be used once per customer.

This offer requires being a user of ***URL.1. The subscription can be canceled at any time. You can find more information about the General Terms of Use regarding the subscription here. The offer can only be redeemed by adults, is non-transferable, and cannot be resold. It cannot be exchanged for cash. If there are special reasons, such as technical issues, we reserve the right to terminate the offer early. The personal data provided will only be used to carry out this offer. The Audible EU data protection statement applies.

SECOND: On 30/10/22, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent party for analysis and to inform, within one month, about what was stated in the complaint letter.

THIRD: On 01/12/22, this Agency received a response letter from the respondent entity, in which it states, among other things, the following:

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“(…) Since this involves a cross-border processing of personal data, according to Article 56 of the GDPR, the supervisory authority of the main establishment of the data controller will be competent to act as the main supervisory authority.

Audible understands that the competent supervisory authority to analyze the complaint filed by the interested party is the main supervisory authority, which in this case is the 'Berliner Beauftragte für Datenschutz und Informationsfreiheit' as the main establishment of Audible is in Berlin. Furthermore, this circumstance is also reflected in Audible's privacy policy (…).

Based on the above, we request that this Agency forward this file to the 'Berliner Beauftragte für Datenschutz und Informationsfreiheit' as the main supervisory authority in this case.

FOURTH: On 21/12/22, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LPDGDD, upon finding possible rational indications of a violation of the rules within the competencies of the Spanish Agency for Data Protection.

LEGAL GROUNDS

I-

Competence

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

On the other hand, in response to the letter sent by the respondent entity, Article 1 of the LSSI establishes as the “Object” of the same:

1. The object of this Law is the regulation of the legal regime of information society services and electronic contracting, regarding the obligations of service providers including those acting as intermediaries in the transmission of content over telecommunications networks, electronic commercial communications, prior and subsequent information to the conclusion of electronic contracts, the conditions relating to their validity and effectiveness, and the sanctioning regime applicable to information society service providers.
2. The provisions contained in this Law shall be understood without prejudice to the provisions of other state or regional regulations outside the coordinated regulatory scope, or that aim to protect public health and safety, including the safeguarding of national defense, the interests of

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consumer, the tax regime applicable to information society services, the protection of personal data, and the regulatory framework for competition defense.

It is defined as "Information Society Services" or "services" in the "ANNEX" of the aforementioned regulation:

"Any service normally provided for a fee, at a distance, by electronic means, and at the individual request of the recipient.

The concept of information society service also includes services that are not paid for by their recipients, to the extent that they constitute an economic activity for the service provider.

The following are considered information society services, among others, and provided they represent an economic activity:

1. The contracting of goods or services by electronic means.
2. The organization and management of auctions by electronic means or of virtual markets and shopping centers.
3. The management of online purchases by groups of people.
4. The sending of commercial communications.
5. The provision of information by telematic means.

While "CHAPTER II" regulates the "Scope of Application" of the same, establishing, in its article 3, regarding "Service Providers established in another Member State of the European Union or the

European Economic Area" the following:

1. Without prejudice to the provisions of articles 7.1 and 8, this Law shall apply to information society service providers established in another Member State of the European Union or the European Economic Area when the recipient of the services is located in Spain and the services affect the following matters:
 - a) Intellectual or industrial property rights.
 - b) Issuance of advertising by collective investment institutions.
 - c) Direct insurance activity carried out under the establishment right or under the free provision of services.
 - d) Obligations arising from contracts entered into by individuals who qualify as consumers.
 - e) Choice of applicable law by the contracting parties to their contract.
 - f) Legality of unsolicited commercial communications by email or other equivalent electronic means.
2. In any case, the constitution, transfer, modification, and extinction of real rights over real estate located in Spain shall be subject to the formal requirements of validity and effectiveness established in the Spanish legal system.
3. The service providers referred to in paragraph 1 shall also be subject to the rules of the Spanish legal system that regulate the matters indicated in that paragraph.
4. The provisions of the previous paragraphs shall not apply in cases where, in accordance with the regulatory norms of the matters listed in paragraph 1, the law of the country in which the recipient of the service resides or is established is not applicable.

Therefore, based on all the above, since the entity being claimed is based in Germany, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this Sanctioning Procedure.

II.-1

Summary of the facts

According to the documents provided by the complainant, she has received commercial communications from the entity being claimed after having previously exercised her right to data deletion and even received confirmation from this entity that her request would be addressed.

II.-2

Classification of the possible infringement committed by sending emails with advertising messages after having previously opposed it:

Article 21 of the LSSI states the following:

- "1. The sending of advertising or promotional communications by email or other equivalent electronic means that have not been previously requested or expressly authorized by the recipients is prohibited.
2. The provisions of the previous paragraph shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the recipient's contact data and uses it to send commercial communications regarding products or services of its own company that are similar to those that were initially the subject of the contract with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where the recipient can...

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exercising this right, the sending of communications that do not include said address is prohibited."

III.-3

Proposal for Sanction

Therefore, in accordance with the evidence available at this time, and without prejudice to the outcome of the investigation, the facts presented could constitute a violation of Article 21 of the LSSI by the entity being complained about for sending commercial communications after having requested the

cancellation of the subscription and having requested the deletion of their data, and after the entity acknowledged receipt and confirmed the deletion of their data.

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic means when the requirements established in Article 21 are not met and do not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

In accordance with these criteria, it is deemed appropriate to impose an initial sanction of €2,000 (two thousand euros) for the infringement of Article 21 of the LSSI, regarding the sending of an advertising email without having been previously requested or expressly authorized for it by the recipient.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

TO INITIATE: SANCTIONING PROCEDURE against the entity, B.B.B. with NIE: ***NIE.1, for infringement of Article 21 of the LSSI.

TO APPOINT: as Instructor Mr. C.C.C., and Secretary, if applicable, Ms. D.D.D., indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

TO INCORPORATE: into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

THAT: for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €2,000 (two thousand euros), for the infringement of Article 21 of the LSSI.

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TO NOTIFY: this agreement to initiate the sanctioning file to the entity, B.B.B. with NIE: ***NIE.1, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; which will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to €400. With the application of this reduction, the sanction would be set at €1,600, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of the amount, equivalent in this case to €400. With the application of this reduction, the sanction would be set at €1,600, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative to the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €1,200 (one thousand two hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the

withdrawal or renunciation of any action or administrative appeal against the sanction.

If it is decided to proceed with the voluntary payment of any of the amounts indicated above, it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Likewise, the proof of payment must be sent to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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Lastly, it is noted that in accordance with the provisions of Article 112.1 of the LPA-CAP, no administrative appeal is available against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On March 23, 2023, the respondent has proceeded to pay the fine in the amount of 1600 euros, making use of one of the two reductions provided for in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been established.

THIRD: The payment made entails the waiver of any action or administrative appeal against the fine, in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the powers attributed to it by other laws."

II

Termination of the procedure

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Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely pecuniary or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202211515, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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